

09:00 AM

25-CIV-09615 MIHOKO WARD VS. KYBA BAOHOANG THAI

LINE 7

MIHOKO WARD
KYBA BAOHOANG THAI

PRO PER

PLAINTIFF MIHOKO WARD'S MOTION / RENEWED APPLICATION FOR ORDER PERMITTING ALTERNATIVE SERVICE

TENTATIVE RULING:

Plaintiff's Renewed Application for Order Permitting Alternate Service pursuant to Code of Civil Procedure ("CCP") Section 413.30, is GRANTED in part.

Plaintiff's motion was primarily directed to allow service of the Summons and Complaint by alternate service, which is now moot as a Proof of Service ("POS") – Civil was filed on 6/3/2026. Though not the correct form for service of a summons and complaint, the Court will accept it as such. However, the 6/3/26 POS reflects personal service at the main courthouse located at 400 County Center, Redwood City, CA, which cannot be utilized as a mailing address for this defendant.

Plaintiff's motion and supporting declarations demonstrates reasonable diligence at past service attempts, that there is no known current mailing address, and that the only remaining service method reasonably calculated to give future notice to the Defendant is by electronic mail or other electronic technology which is now allowed by code. CCP § 413.30(a)(1).

Therefore, as defendant has now been personally served, any future service in this matter can occur by electronic mail to defendant's last known email address: kbthai@pm.me and by text message to: (415) 888-5588. *See*, CCP § 413.30(a)(1); and CRC Rule 2.251.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the Order of the Court by Minute Order, and the Court dispenses with the need for any Order after hearing on this motion.

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25-CIV-09615 MIHOKO WARD VS. KYBA BAOHOANG THAI

LINE 8

MIHOKO WARD
KYBA BAOHOANG THAI

PRO PER

PLAINTIFF MIHOKO WARD'S MOTION FOR PRELIMINARY INJUNCTION, REQUEST FOR ORDER SHORTENING TIME AND REQUEST FOR REMOTE APPEARANCE

TENTATIVE RULING:

Plaintiff Mioko Ward's Motion for Preliminary Injunction is DENIED.

Plaintiff's Request for Order Shortening Time is summarily DENIED as moot.

Plaintiff's Request for Remote Appearance for this hearing is GRANTED.

Legal Authority

On a motion for preliminary injunction the court evaluates two interrelated factors: (1) the likelihood that the plaintiff will prevail on the merits of the claim at trial, and (2) the interim harm the plaintiff would be likely to suffer if the injunction is denied as compared to the harm that the defendant would be likely to suffer if the injunction is granted. (*Amgen Inc. v. Health Care Services* (2020) 47 Cal.App.5th 716, 731.) The weighing of these harms involves consideration of the inadequacy of other remedies, the degree of irreparable harm, and the necessity of preserving the status quo. (*Donahue Schriber Realty Group, Inc. v. Nu Creation Outreach* (2014) 232 Cal.App.4th 1171, 1177.) The general purpose of an injunction is the preservation of the status quo until a final determination of the merits of the action. (*Continental Baking Co. v. Katz* (1968) 68 Cal.2d 512, 528.)

A preliminary injunction is not itself a cause of action. "[O]rdinarily, a preliminary injunction may be sought only when the underlying cause of action on which the provisional remedy rests is presented for decision through the pleadings." (*Department of Fair Employment and Housing v. Superior Court of Kern County* (2020) 54 Cal.App.5th 356, 384-385, citing *Moreno Mut. Irr. Co. v. Beaumont Irr. Dist.* (1949) 94 Cal.App.2d 766, 778 ["A preliminary injunction is warranted only if there is on file a complaint which states a sufficient cause of action for injunctive relief of the character embraced in the preliminary injunction."]); see generally Moore & Thomas, Cal. Civ. Practice (2020) Procedure, § 16:119.)

Injunctions are generally classified as either "prohibitory" or "mandatory." "[A]n injunction is prohibitory if it requires a person to refrain from a particular act and mandatory if it compels performance of an affirmative act *that changes the position of the parties.*" *Davenport v. Blue Cross of Calif.* (1997) 52 Cal.4th 435, 446-448 (emphasis added) (rejecting "preservation of status quo" as test for prohibitory injunction). Mandatory injunctions are *rarely* granted: "The granting of a mandatory injunction pending trial is not permitted except in *extreme* cases where the right thereto is *clearly* established." *Teachers Ins. & Annuity Ass'n v. Furlotti* (1999) 70 Cal.App.4th 1487, 1493.

Application